

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT: Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

Criminal Appeal No. 47/2023

(Against the judgment/order dated 28.02.2018
passed by the High Court of Balochistan, Sibi Bench,
in CrI. A. No. 121(S)/2014 and M. R. No. 3(S)/2014)

Sunni Masih

Appellant(s)

Versus

The State

Respondent(s)

For the Appellant(s): Malik Saqib Mehmood, ASC

For the Respondent(s): Ms. Robina Butt, ASC

Date of Hearing: 20.04.2026

JUDGMENT

Muhammad Hashim Khan Kakar, J. For allegedly raping and murdering a minor girl namely Angel Kumari, aged about 5 years, the appellant, Sunni Masih, was booked in case FIR No.8/2014, registered at Police Station City, Sibi on 22.01.2014 and after a regular trial he was convicted by the Trial Court for the offence under sections 302(b), 364-A and 376 PPC and sentenced to death. The appellant challenged his convictions and sentences through an appeal which was dismissed by the High Court of Balochistan and his convictions and sentences recorded by the Trial Court were upheld and confirmed. Hence the present appeal with the leave of the Court granted on 19.01.2023, which reads as under:

“At the very outset it has been argued by the learned counsel for the petitioner that the petitioner has been falsely roped in this case. Further contends that the evidence available on record to saddle the petitioner with the responsibility hinges upon circumstantial evidence. Though there is a statement of the petitioner recorded under Section 164 Cr.P.C. but he has taken a specific plea that he was under intoxication. The question whether if a person under the impulses of intoxication commits a crime, the same can be enroute for capital punishment as arrived at by both the courts below, requires consideration. Consequently, leave to appeal is granted to re-evaluate the entire evidence in the interest of safe administration of criminal justice.”

2. Learned counsel for the appellant submitted that in view of some peculiarities of this case, he does not press the appeal on merits of the appellant's case, however, presses the same only to the extent of the sentence of death passed against the appellant which sentence, according to the learned counsel, warrant reduction to imprisonment for life on account of the fact that case of the prosecution solely hinges upon the judicial confession of the appellant which categorically shows that the offence in question had been committed under intoxication. As against that the learned State Counsel vehemently opposed the said request of the learned counsel for the appellant.
3. The perusal of record shows that a minor girl, namely, Angel Kumuri, aged 5 years, after being raped was committed to death in a cruel manner and after a detailed assessment of the evidence available on the record both the courts below had concurred in their conclusion regarding the guilt of the appellant having been established beyond reasonable doubt and upon our own independent evaluation of the evidence we have not been able to take any legitimate exception to the said conclusion concurrently reached by the courts below.
4. So far as the contention/request of the learned counsel for the appellant regarding reduction of sentence is concerned, the same cannot be acceded to being devoid of force as section 85 PPC furnished a complete answer and it reads as under:

“Act of a person incapable of judgment by reason of intoxication caused against his will. Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law; provided that the thing which intoxicated him was administered to him without his knowledge or against his will.”
5. A bare reading of the above provision of law clearly manifests that nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law; provided that the thing which intoxicated him was administered to him without his knowledge or against his will. Undoubtedly, the law recognizes that a person should not be punished for acts committed when their will and judgment have been overpowered through no fault of their own, however, voluntary intoxication is not a defence under this section. The law expects individuals to be responsible for the foreseeable consequences of their voluntary choices. Intoxication caused by one's own negligence or

recklessness does not excuse the offence. The perusal of confessional statement of appellant, which is true, voluntarily and corroborated on all material aspects would show and suggest to believe that the appellant voluntarily consumed alcohol, as such, section 85 PPC does not apply in the instant case. It applies only when the intoxicant has been administered without his knowledge or against his will. A man who gets drunk voluntarily has no right to claim exemption from criminal liability.

6. For the foregoing reasons, we are of the unanimous opinion that the impugned judgment is free from any illegality or infirmity, nor there is any misreading or non-reading of evidence, as such it does not require interference by this Court. Consequently, this appeal being devoid of merits is dismissed.

Islamabad
20.04.2026
(Farrukh)



Approved for Reporting